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Trump immigration crackdown comes for truckers in CA

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In October, an immigrant truck driver — who federal authorities alleged does not have legal status — killed three people in an Ontario car crash. In a letter sent last week, the U.S. Transportation Department's Federal Motor Carrier Safety Administration claimed the collision "may have been avoided," if California had complied with new federal rules — rules that could also lead to 61,000 truck drivers in California losing their licenses.

As CalMatters' Adam Echelman explains, before President Donald Trump's return to the White House, non-citizen immigrants, such as refugees and asylum seekers, were allowed by the federal government to carry trucking licenses. More than 720,000 trucking licenses are active in California, with about 61,000, or 8%, belonging to non-citizen immigrants.

But in September, U.S. Transportation Secretary Sean Duffy issued new regulations prohibiting certain immigrants from holding commercial trucking licenses — and singled out California in the process.

After claiming that the transportation department conducted a "nationwide audit" of trucking policies, Duffy threatened to withhold $160 million, or roughly 4% of the state's federal highway safety funds, from California due to alleged violations.

* Duffy, in a September statement: "California's reckless disregard is frankly disgusting and an affront to the millions of Americans who expect us to keep them safe."

Duffy, in that same statement, argued that issuing licenses to "dangerous foreign drivers" threatens "the safety of every family on the road." Yet, in publishing the new regulations, the Federal Motor Carrier Safety Administration also acknowledged that there's not enough evidence to prove that certain kinds of immigrants drive more dangerously than others.

The transportation department also said it won't award the state $40 million from a separate federal grant because it claims that California is failing to enforce English-language proficiency guidelines for truck drivers.

If California rescinded the trucking licenses from all its non-citizens, the sudden drop in truckers could result in increased shipping costs, experts say. California's trucking industry could also take a hit: Despite the explosive growth of online retailers in the last decade, which has helped expand the trucking industry, trucking companies still struggle to retain workers who are willing to work the long hours and receive the low pay that entry-level positions offer.

Read more to learn how California is responding to the new rules.

Lawsuit tracker: CalMatters is tracking the lawsuits California is filing against the Trump administration. Check it out here.

Other Stories You Should Know

Budget outlook looks familiar

California is likely to remain in the red for next year, according to the latest analysis by the nonpartisan Legislative Analyst's Office, writes CalMatters' Yue Stella Yu.

California will likely face a $17.7 billion budget gap in the new fiscal year, which could grow to an annual $35 billion by 2027-28 as spending continues to grow, the report finds.

This is the fourth year in a row during Gov. Gavin Newsom's governorship that the state is projected to have a deficit despite increasing its revenue. Between just July and October, the state exceeded projected tax revenue by $6 billion — mostly powered by the fanfare around artificial intelligence in Silicon Valley — but nearly all of that will go toward K-12 schools, community colleges and state reserves, the office said.

Assembly Budget chairperson Jesse Gabriel, an Encino Democrat, said the committee "remains committed to crafting a responsible budget." But the vice chairperson of the budget committee in the Senate, Republican Sen. Roger Niello of Roseville, blamed the structural deficit on Democrats' "unstoppable spending problems."

Read more here.

Zoning lawsuit won't reach Supreme Court

From CalMatters housing reporter Ben Christopher:

East Palo Alto settled a lawsuit challenging its "inclusionary zoning" policy, ruling out — for now — the possibility that a federal court might find it, and similar programs across the country, unconstitutional.

Like nearly 150 jurisdictions across California, the Bay Area city requires developers of new multifamily housing to either set aside some units for lower income tenants or pay a fee to the city's affordable housing fund.

The case began with local couple Wesley and Angela Yu who decided to split their lot and build two units on the new parcel. The city required them to sell or rent one out at below-market rates or pay $54,891.

The Yus sued with the help of the libertarian Pacific Legal Foundation, arguing that the policy violates the U.S. Constitution's prohibition on the seizure of property without compensation. The case's backers believed the U.S. Supreme Court's conservative majority would see things the same way should the suit ever make it that far.

It won't. Shortly after the suit was filed, East Palo Alto's city council voted to exempt lot splits like the Yus' from the policy. On Tuesday, they formally settled the case.

Pacific Legal settled a similar challenge in Healdsburg last year and has pending challenges to inclusionary zoning rules in Denver, Colorado and Jackson, Wyoming.

And lastly: Phonics lessons and a call to investigate

A new law moves California schools toward a phonics-based reading approach. CalMatters' Carolyn Jones and video strategy director Robert Meeks have a video segment on the measure, which also provides training for principals and reading specialists, as part of our partnership with PBS SoCal. Watch it here.

And check out another video from CalMatters' Deborah Brennan and Robert about California lawmakers demanding answers after shrapnel rained down on Interstate 5 in October during a Marines 250th anniversary celebration. Watch it here.

SoCalMatters airs at 5:58 p.m. weekdays on PBS SoCal.

California Voices

CalMatters columnist Dan Walters: Expectations of a continued revenue surge buoyed hopes within the state Capitol that California's chronic budget deficits might disappear, but the latest report from the Legislature's fiscal advisor has thrown cold water on that scenario.

Other things worth your time:

Some stories may require a subscription to read.

GOP control of House at risk after court blocks TX map // Los Angeles Times

FBI sent letters to CA lobbyists as part of corruption probe involving ex-Newsom chief of staff // The Sacramento Bee

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CA doctors urge ban on engineered stone as silicosis cases surge // KQED

San Mateo County moves to tighten limits on cooperation with ICE // The Mercury News

These 'forever chemicals' pollute Fresno more than any other county in CA // The Fresno Bee

Border Patrol agent arrested in Long Beach was combative, asked police if they are 'stupid' // The Orange County Register

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